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Senate of Virginia Floor Session, Tuesday, January 27, 2026

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[00:19:19] This is the Senate of Virginia, Richmond, Virginia, Chamber.

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[00:26:11] This is the Senate of Virginia, Richmond, Virginia, Senate, Chamber.

[00:27:46] The Senate will come to order.

[00:29:48] The Senators will please take their seats. persons not entitled to the privileges of the floor will retire to the gallery. The senators and all in attendance will please stand if you are able and be led in prayer this morning by Chaplain Terry Haddock from the Norfolk Police Department in Norfolk and remain standing and be led in the Pledge of Allegiance to the flag of the United States of America by Corinne Sloan, journal clerk in the Senate clerk's office. Good afternoon what a privilege to

[00:30:23] be with you all I know many of you and all that you do for our communities and it doesn't go unnoticed so if you could join me in prayer today as we thank God for this beautiful day and this beautiful time together. Almighty God I give you thanks for today we pause together in your presence and ask for guidance and wisdom for the men and the women here in the Senate chamber as they make decisions that are far-reaching give each one here discernment and compassion. Help us all realize that the decisions that are made are wider and

[00:30:59] broader than we can measure. Guide and direct the council of this Honorable Assembly. Your word says you are the light of the world and a city on a hill cannot be hidden. May your wisdom and your power be with everyone here today that has been entrusted with leadership positions to lead and to serve all the people your word says cast all our cares and petitions upon you oh lord and i humbly ask this in the mighty powerful holy name of our lord amen pledge allegiance to the flag of the united states

[00:31:38] of america and to the republic for which it stands one nation under god indivisible with liberty and

[00:31:47] justice for all the clerk will call the roll all those present please vote aye the clerk will close the roll you have a quorum madam president

[00:32:25] senate journal for monday january 26 2026. the senator from eastern prince william county moves that the reading of the journal be waived all in favor of waiving the reading of the journal will record the record their vote aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll Ayes 25, noes 13.

[00:32:58] Ayes 25, noes 13. The reading of the journal is waived. The clerk will report any communications from the House of Delegates.

[00:33:17] The chair recognizes the senator from Eastern Fairfax. Afternoon, Madam President. I move to waive reading and the communication from the House of Delegates. Madam President, rise for parliamentary inquiry.

[00:33:35] Yes, the senator has the floor. Madam President, is this the communication from the House of Delegates that includes the bill on the gerrymandering of the congressional districts moving forward? This is the House communication that is with regard with redistricting.

[00:33:56] Madam President, additional question? The Senator has the floor. I'm sorry, I have my thesaurus out and gerrymandering and this redistricting were beside each other. Madam President, I'm assuming that that the vote on the waiving of the reading requires four-fifths in order for that to be waived

for today. Otherwise the bill could be up on second reading later today. The Senator is correct. It requires a four-fifths vote to waive the reading. Thank you, Madam President.

[00:34:28] Madam President. The Senator from Eastern Fairfax. Parliamentary Inquiry. The senator has the floor. If this vote fails does this mean we have to listen to Miss Perkinson read a bunch of titles of the bill that came over plus a whole bunch of commending memorial resolutions that came from the House of Delegates. If the if the vote is not sufficient and the motion fails the clerk will read the

[00:34:58] titles. Alright I'll go get lunch. The question is shall the reading of the communication be waived all in favor of waiving the reading of the communication from the House of Delegates will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll as 21 knows 18 eyes 21 knows 18

[00:35:36] the reading of the journal the reading of the communication is waived it fails I'm sorry the reading of the communication fails in the House of Delegates January 26 2026 the House of Delegates has passed the following House bill House bill 1384 a bill to amend and reenact items 5 and 6 and enactments 14 15 and 16 of chapter 7 25 of the acts of assembly of 2025 which appropriates the public revenues for two years ending respectively on June 30th

[00:36:12] 2025 and June 30th 2026 and to amend chapter 725 of the acts of assembly of 2025 which appropriates the public revenues for two years ending respectively on June 30th 2025 and June 30th 2026 by adding an item numbered 78.10 and by adding enactments numbered 17 18 19 and 20 which appropriates the public revenues for two years ending respectively on June 30th 2025 and June 30th, 2026, and to provide for the submission to the voters of proposed amendments to the Constitution of Virginia by amending section 6 of Article 2

[00:36:51] and by adding in the schedule a section number 6 and to repeal section 30-13 of the Code of Virginia relating to the General Appropriation Act Department of Elections. G. Paul Nardo, Clerk of the House of Delegates. In the House of Delegates, January 26, 2026, House of Delegates has agreed to the following House joint resolutions. HJR 54 commending the Honorable Robert G.

[00:37:16] MacDonald. HJR 57 celebrating the life of Earl Cole. HJR 58 celebrating the life Jeremy Lewis Hall. HJR 59 commending the Old Fiddler's Convention. HJR 60 commending the Royal Retreat Volunteer Fire Department. HJR 61 commending Fred Wayne Weatherman, H.J.R. 62 celebrating the life of Emmett Pierce, H.J.R. 63 commending the Mason's Hall Historic Preservation Foundation, H.J.R. 64 commending Maritza Pinero, H.J.R. 65 commending

[00:37:53] the Tuscarora Mill Restaurant, H.J.R. 66 commending Bishop Sean L. Stevens, H.J.R. 67 commending cash dentler hjr 68 committing vanessa grigsby hjr 69 committing the lancaster little league senior girls softball team hjr 70 commemorating the life and legacy of benjamin harrison the fifth hjr 71 committing richlands area citizens for the arts hjr 72 committing patrick henry scotchtown

[00:38:24] hjr 75 committing donald a irby g paul nardo clerk of the house of delegates the clerk will will report any communications from the governor.

[00:38:40] We do not have any, Madam President. We have now arrived at the time in the morning hour when we have the honor of welcoming our guests who are joining us here in the Senate gallery. And I give my daily reminder that a senator will rise and will provide an introduction for their visitors.

[00:39:02] I will then offer the welcome of the Senate. I ask that everyone please hold your applause until I've completed the welcome of the Senate. The chair recognizes the senior senator from Virginia Beach.

[00:39:19] Madam President, I rise for an introduction. The senator has the floor. Madam President, on behalf of Senator Williams Graves and myself, I'd like to introduce Chaplain Terry Haddock, who provided today's invocation. Terry Haddock is a dedicated individual who serves as a senior chaplain for Fire, Police, and Sheriff's Department in the city of Norfolk.

[00:39:39] With a passion for providing spiritual support and guidance, Terry plays a vital role in the public safety community by offering assistance to firefighters, police officers, and sheriff deputies. Her commitment to fostering a sense of well-being and resilience within her force reflects a deep understanding of the unique challenges faced by those in uniform.

[00:40:01] Through her role as chaplain, Terry Haddock contributes to building a supportive environment for public safety in Norfolk, emphasizing the importance of both mental and spiritual well-being in the demanding field of public safety. Accompanying Terri today in the gallery are her daughter, Nicole Hudson, Executive Vice President of Independent Property Operators of America, and her friend, Ravenaire Campbell, Chief Compliance Policy Officer with Chesapeake Regional Healthcare.

[00:40:33] With that, Madam Chair, I wish we would give the warm welcome of the Senate to Terri Haddock and her accompanying party today. If our distinguished guest will please rise. Chaplain Haddock, thank you so much for offering the invocation today.

[00:40:51] Thank you for traveling here to Richmond in the midst of an ice storm and joining us. We deeply appreciate your words and your prayers for the Senate this morning. And welcome also to your daughter, Nicole, and to your guest, Revaner.

[00:41:06] Thank you so much for joining us today. And Senators, I ask that we give the warm welcome of the Senate to our distinguished guests. The chair now recognizes the senator from Western Henrico.

[00:41:28] Thank you, Madam President. Madam President, I rise for the purposes of an introduction. The senator has the floor. Thank you, Madam President. Madam President, today we have with us Troop 799G, Scouting America. If they'll please rise from Tuckahoe, from the greatest county in the Commonwealth, Henrico.

[00:41:46] Let's go. That's right, Senator Stanley. they they brave the elements to come see us today I think they're a little upset that they're not missing school while they visit us but they're not gonna have school this week anyway so it doesn't matter right but anyway troop 799 G is the first all-girls scouting America troop with a Richmond address which is super awesome and they were officially formed this year they participate in outdoor adventures conservation projects leadership development and meaningful community service they are proud to empower young women while making a positive impact in their local community which they do I've had the pleasure of meeting them out in their neck of the woods in Tuckahoe and they

[00:42:25] are doing great things and so I hope we'll give them a warm Senate welcome thank you senator and thank you to our guests who are joining us troop 799 G thank you so much for the work that you are doing and you're making history as we just heard from the senator's introduction so thank you for being history makers. I hope you are enjoying your visit to the Capitol and getting an opportunity to talk to some

of your representatives, especially from the representatives from what is apparently the finest county in Virginia. And I

[00:43:03] thank the troop leaders who have joined us as well, bringing you here to the Capitol. Senators, I ask that we give the warm welcome of the Senate to Troop 799G. the chair recognizes the senator from Shenandoah thank you madam president I rise to ask for the request of absence from my seatmate the senator from Tazewell as he is away from the capital and president personal business thank

[00:43:40] you senator the journal will so reflect the chair recognizes the senator from Rockingham madam president I rise for an introduction and I apologize there is no green sheet so take note the senator has the floor madam president I would like to draw your attention to a friend of mine in the gallery who somehow got by the the desk and didn't register but my friend Gail Bronk and her daughter Sonia are in the gallery today they are from Harrisonburg actually Rockingham

[00:44:20] County. Gail also works as the director of Vail Valley Alliance for Independent Living provides incredibly important services to our disability community in the Shenandoah Valley and it was a nice surprise to see Gail and Sonya in the gallery here today and I would ask you to extend the warm welcome of the Senate to them thank you senator and thank you for that introduction though you snuck by apparently the green sheet process Gail

[00:44:56] and Sonia we certainly welcome you thank you for joining us in the gallery and hope you have a wonderful visit today here in the Capitol and senators I ask that we give the warm welcome of the Senate to our visitors Gail and Sonia the chair recognizes the senator from Hanover thank you madam president madam president I rise for introduction and thank you and I also have no green sheet the senator has the floor thank you madam president madam president it

[00:45:32] struck me as I was listening to the senator from Rockingham we're here again today all of us Republicans and Democrats House and Senate doing the business of the people and we could not have been here today without our team our team that is our desk staff our team on committee operations our team from the Capitol Police, our team for DGS, and our team from Merriweather's that takes care of us through this. So, Madam President, I would like to introduce them or thank them for coming in, enduring hardships themselves, being away from their families and dealing

[00:46:09] with the weather, and thank them for keeping us moving forward through this time. So if you could offer them the warm welcome and appreciation from all members of the Senate. Senator, I thank you for that very very important reminder and indeed we have wonderful staff and individuals who are committed to doing the work of the Commonwealth for all the citizens of Virginia and you're absolutely correct none of this would be possible without their commitment their dedication. Senators I ask that we give a warm round of applause of gratitude for the work of

[00:46:47] of everybody who makes our lives and our days possible.

[00:47:05] Is there any other business for the morning hour? Seeing none, the clerk will call the calendar. - Senate calendar for Tuesday, January 27th, 2026. Uncontested calendar, Senate bills on third reading.

[00:47:23] - The chair recognizes the senator from Prince William. - Madam President, I move that Senate bills on third reading, uncontested calendars on page one through seven, Senate bills 37 through Senate bills 492, placed on their final passage in the block any senator desiring to remove a bill from the block please do so after the clerk has read the number of the bill the question is shall the Senate bills on the

uncontested calendar third reading pages 1 through 7 Senate bill 37 through Senate bill 492 be placed on their final passage in the block with the understanding that any senator

[00:48:02] desiring to remove a bill from the block will do so after the clerk has read the number of the bill all in favor of the motion we'll say aye those opposed no the ayes have it the motion is agreed to the bills are before us in the block the clerk will read the number of the bills Senate bill 37 Senate bill 70 Senate bill 91 Senate bill 97 Senate bill 105 Senate bill 106 Senate bill

[00:48:33] 108, Senate Bill 117, Senate Bill 151, Senate Bill 171, Senate Bill 177, Senate Bill 206, Senate Bill 216, Senate Bill 242, Senate Bill 291, Senate Bill 293, Senate Bill 318, Senate Bill 360, Senate Bill 492. The question is, shall the bills in the block pass. That is all all bills. Are the senators ready to vote? Have

[00:49:09] all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 39, noes 0. Ayes 39, noes 0. The bills in the block pass. Regular calendar Senate bills on third reading. Senate bill 19, a bill relating to Department of Education, policies relating to instructional material that contains sexually explicit content applicability construction the chair recognizes the senator from Hampton thank you madam president I move to Senate bill 19 pass and speaking to that the senator has the floor thank you

[00:49:49] madam president Senate bill 19 clarifies a code section related to parental notification of sexually exploited educational material in public schools this bill does not remove or weaken the responsibility of schools to notify parents about their children's educational content the The original bill to pass this body in 2022 included an enactment clause.

[00:50:11] This clause stated that the provisions of this act shall not be construed as requiring or providing for the censoring of books in public elementary or secondary schools. Two years ago, we passed legislation carried by our new lieutenant governor that would have codified that provision.

[00:50:30] However, the former governor vetoed that legislation. We know school divisions have been using this code section to remove books from school libraries. Last year, I carried a resolution instructing J. Lark to study the removal of books in public school libraries.

[00:50:50] The study found that while many school divisions are acting with fidelity, some school divisions across the Commonwealth have misconstrued this code section, citing it as legal justification to censor and ban books. that have studied since 2020, 32 school divisions have reported removing at least one title from libraries and media centers, with some divisions pulling dozens of books and one division reporting the removal of 125 titles. The Perks of Being a Wallflower, The Handmaid's Tale, Looking for Alaska,

[00:51:25] Wicked, and Beloved, along with four other novels by Toni Morrison, are among the banned titles. There are already established procedures to challenge reading materials in libraries. In fact, 88% of public school divisions have formal book removal policies.

[00:51:44] Misapplication of this code section as a tool for censorship is not an appropriate legal avenue. Senate Bill 19 simply clarifies this law while preserving its original purpose, respecting the role of parents in their children's education, and safeguarding a long-standing tradition of providing our children with free speech of protection and access to books for these reasons i urge passage of senate bill 19. the question is shall senate bill 19 pass all in favor of the motion will record their votes aye those opposed

[00:52:21] no are the senators ready to vote have all the senators voted do any senators desire to change their votes the clerk will close the role as 21 nose 18 eyes 21 nose 18 senate bill 19 passes senate bill 39 a bill to direct the department of education to identify best practices relating to implementing technology tools to assist with identifying students at risk of engaging in self-harm or intending to inflict harm on others the chair recognizes the senator from arlington

[00:52:59] Good afternoon, Madam President. Madam President, I move that the bill pass and speaking to the motion. The Senator has the floor. Thank you. Senate Bill 39 establishes a work group to be led by the Virginia Department of Education in collaboration with many stakeholders to look at the use of technology tools in school settings for the purpose of identifying students who may pose a risk of self-harm or may pose a risk of harming others. These tools are out there some of

[00:53:36] the technology programs are in fact being used by various school systems but there are many issues that need to be discussed. When should the child get counseling right away if the technology tool identifies certain key words or factors, privacy issues, how will these tools be implemented, fiscal costs. So there are a lot of implementation questions that are associated with this very important and I think potentially very helpful tool which is why we're

[00:54:14] having a study. It also directs the Department of Education to identify school divisions that may be interested in piloting a technology tool that I just described and a report is due to the General Assembly actually to our education and health committees by November 15th of 2026. I do think we will gain useful information. I think this topic is very timely and I hope it is the will of the body to pass this bill. Thank you. The question is shall

[00:54:49] Senate bill 39 pass all in favor of the motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their votes the clerk will close the roll eyes 38 no zero eyes 38 no zero senate bill 39 passes senate bill 53 a bill relating to lighted vehicle headlights lawful stop by law enforcement officer The chair recognizes the senator from York.

[00:55:26] Thank you, Madam President. I move that the bill pass and speak into the motion. The senator has the floor. Thank you. This bill is a, that deals with the driving of headlights at night and it passed out of the Senate last year and this is no change in policy whatsoever, it just clarifies the language making it a little more understandable and I would ask that the body pass the bill.

[00:55:56] The question is, shall Senate Bill 53 pass? All in favor of the motion will record their votes aye, those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their votes?

[00:56:13] The clerk will close the roll. Ayes 29, noes 9. Ayes 29, noes 9. Senate Bill 53 passes. Senate Bill 71, a bill relating to Health Care Decisions Act, patient's incapable of informed decisions, absence of next of kin.

[00:56:36] - The chair recognizes the senator from Arlington. - Thank you, Madam President. Madam President, I move that the bill pass and speaking to the motion. - The senator has the floor. - Thank you, Madam President. What this bill does is it allows hospitals that have patient care consulting committees to use those committees in a process for making healthcare decisions for patients who have no advanced directive and no relative or next of kin can be identified

[00:57:17] so the care team can have serious conversations about the care options in front of them. So right now hospitals are either going to court, they're going to a judge to get a determination or they're asking for a guardianship appointment.

[00:57:38] And many in the healthcare field who care very strongly about their patients and wanting their patients to have the best possible care and advice believe that the Patient Care Consulting Committee would be a very helpful option.

[00:58:02] The Patient Care Consulting Committee have a doctor, a nurse, a social worker, and an ethicist, as well as two individuals who are not affiliated with the hospital but could play a role in the patient's care decision-making process.

[00:58:21] Let me be clear, this bill says in two separate places that the hospital will continue to look for, again, relatives or addictive kin, even through the patient care consulting process, the hospital will continue its obligation to look for a relative next of kin for that patient.

[00:58:49] So it's my wish that the Senate finds it within itself to pass this bill. This bill came to me from an ICU nurse who believes that a patient care consulting committee may provide a more patient-centered decision model for individuals near their end of life without any advanced directive and without relatives there to speak on their behalf. With that explanation, I once again renew

[00:59:23] my motion that the bill pass. The chair recognizes the senator from Roanoke. Thank you, Madam President. I rise to ask the patron a question. Does the senator from Arlington yield? Yes, I yield.

[00:59:42] Senator has the floor. Thank you, Madam President. Madam President, I would ask the senator from Arlington. This was the bill where I was coming from the Agriculture Committee and walked in late in the presentation. Is there a specific hospital or hospital system that requested this legislation?

[01:00:02] The Senator from Arlington. Thank you, Madam President. In response to the question, a hospital did not ask me for this, but the Virginia Health and Hospital Association has reviewed it heavily and is in agreement.

[01:00:18] They did not ask for this. The Senator from Roanoke. Madam President, I thank the Senator. Did the Senator accident? Okay. Thank you, Senator. The question is, shall Senate Bill 71 pass?

[01:00:39] All in favor of the motion will record their votes, aye. Those opposed, no. Madam President. My apologies. I don't see your name on here. The senator from King George. I'm still trying to learn how to operate these technical things. They're very complicated.

[01:00:55] And I apologize. They're buttons. Rise to speak to the bill, Madam President. Yes, the senator has the floor. Thank you. And I apologize, but I want to bring to the attention the members line 150 which gives absolute immunity to all of these folks that serve on these committees now when I read a sentence that says someone shall have no civil liability from prosecution or civil liability that gives me some concern though they might be well-intentioned and I'm just wondering I

[01:01:32] I would ask the senator did the did this go through the courts committee was it was it vetted through the courts committee madam president well the senator from Arlington yield for that question madam president this did not go through the courts committee it went through education and health because of the amendments that were being made and I would like to respond to the question the senator has the floor oh thank you um the health care professionals in their professional

[01:02:04] capacity as you know do have a certain amount of professional ethics involved so we are under the expectation this doesn't add any additional protection um to those health care professionals if they're making a decision in their professional capacity the senator from king george um man president i thank the senator for that question but it and i apologize for this i can't support

[01:02:35] something that gives anyone complete immunity from any sort of liability and it says for these functions and i'm not even sure what that means and so if you're going to purport to give somebody absolute immunity from criminal or civil liability i think we at least ought to that that ought to go through the courts committee and let some of the lawyers and others vet that provision that is very very broad so I leave it up to the senator as to how I can't support it as it is madam president I the senator from Arlington I

[01:03:15] appreciate that comment I am willing to take this by for the day but I is that acceptable to the senator from Eastern Fairfax is expecting to say something I I have another senator who wishes to speak, but senator from Eastern Fairfax.

[01:03:33] I was just going to ask for this to go by temporarily. The Senate Bill 71 will go by temporarily. Senate Bill 109, a bill relating to school board policies, parental notification, safe storage of prescription drugs, and firearms in household.

[01:03:55] The chair recognizes the senator from Western Fairfax. Madam President, I move that SB 109 pass in speaking to that motion. The senator has the floor. - Thank you, Madam President. This is a bill that this body has seen before. It requires school boards to notify parents about the importance of safely storing prescription medication and firearms in their home to prevent death in children.

[01:04:21] We know that death by firearm is the number one cause of death and it really creates a partnership between our schools, our educators, and our parents ensure that we keep our children safe and i hope that we pass sb 109 the question is shall senate bill 109 pass all in favor of the motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their votes

[01:04:58] the clerk will close the roll eyes 21 noes 18. ayes 21 noes 18. senate bill 109 passes Senate Bill 155, a bill relating to official emblems and designations, state native pollinator, brown belted bumblebee.

[01:05:18] The chair recognizes the senator from Lynchburg. Thank you, Madam President. Speaking to the bill. The senator has the floor. Thank you. You know, this year began with great anticipation after the elections with a new governor, a new administration, a new House of Delegates.

[01:05:39] And when we began this session several months ago, there was some chatter about right to work. Maybe some murmurs about the gerrymander amendment to take away four Republican congressional seats. Some slight talk about abortion and maybe some other issues.

[01:05:58] But now, ladies and gentlemen of the Senate, the moment has arrived for a momentous piece of legislation that may well define this entire General Assembly session. Madam President, this bill, Senate Bill 155, is to designate the brown-belted bumblebee as the native pollinator for the Commonwealth of Virginia.

[01:06:21] And now, importantly, I do not want anyone to think that this bill in any way is meant to denigrate or diminish the honeybee, which has already been designated as the state pollinator. But the brown belted bumblebee is a native pollinator.

[01:06:40] The honeybee is an import from Europe. So this is very important. This bill is brought to me by the Garden Clubs of Virginia with over 34 clubs and 3,400 members who are very interested in gardening and the functions that the bees have in pollinating our plants.

[01:07:03] If you have not studied apiology, a subspecialty of entomology, you might not be aware that the brown belted bumblebee pollinates through sonication. You might ask, what is sonication?

[01:07:20] Let me tell you, ladies and gentlemen of the Senate, sonication is buzz pollination. Buzz pollination. in fact is you did it in addition it is pollination through vibration did you do that and of pollination through vibration so more importantly the brown belted bumblebee is found in every corner of the Commonwealth of Virginia therefore making it the most worthy designee as the native pollinator for the Commonwealth

[01:07:59] of Virginia, I ask that the bill pass and that we designate the humble yet hard-working brown-belted bumblebee, the native pollinator of the Commonwealth. What would you like? More? Well, y'all make some comments and I shall respond.

[01:08:15] Thank you. Thank you, Madam President. I thank you for your honeyed speech this morning. Thank you so much. The chair recognizes the senator from Eastern Fairfax. Madam President, I want to have the gentleman from Lynchburg, or the senator from Lynchburg would yield for a question.

[01:08:31] Senator, will you yield for a question? I will yield as long as it's in my specialties of apiology and entomology. The senator from Eastern Fairfax has the floor. Thank you, Madam President. Well, I'll tell the gentleman I'm not going to ask him to say Bombas Grisicolas three times before I burn my finger on a match when I light it, but I did note that the senator's district includes Liberty University and a famous church, I think Thomas Road Baptist church and I was just curious whether the senator now believes it's appropriate to teach the children in his public schools about both the birds and the

[01:09:09] native bees well as long as the senator the senator from Lynchburg has the floor you're responding to the senator from Eastern Fairfax I mean as long as we're talking simple buzz pollination pollination through vibration I think it is appropriate to teach this in all schools in the commonwealth.

[01:09:31] The senator from Eastern Fairfax. I could go a lot of places with this, Madam President. I think I'm going to pass for today. Hearing no more buzz about this bill, the question is, shall Senate Bill 155 pass?

[01:09:53] All in favor of the motion will record their votes aye, those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their votes? The clerk will close the roll.

[01:10:11] Ayes 36, noes 2. Ayes 36, noes 2. Senate Bill 155 passes. Senate Bill 227, a bill relating to arbitration, high volume arbitration service providers, selection of arbitrators, civil penalty.

[01:10:33] The chair recognizes the senator from Eastern Fairfax. Thank you, Madam President, I move the bill to pass, and speaking to the bill. senator has the floor ladies and gentlemen senate we've now moved from the exciting world of plant sex to arbitration um so uh matter president what this bill does is it basically has to do with arbitration um if anybody's had a dispute with a large company lately you might have noticed that uh it's pretty much impossible to go to court anymore because most companies mandate you engage in arbitration if you have any kind of dispute and the problem with that is a lot of these companies

[01:11:11] hire basically one company, which is a massive company, which basically decides who your judge is going to be for you. And you do it on their terms, their rules, their judge, their whatever. It's impossible to get a fair shake if you're a consumer with a problem. And so basically, there's only so much we can do because there's something called the Federal Arbitration Act.

[01:11:30] And what this does is says that any mass arbitration provider, that's a company that does like thousands and thousands of arbitrations a year, has to register with the state and they have to meet certain standards. They have to give you a choice of arbitrators. They have to give you a panel of three people to pick from. They also say that they have to, there's certain restrictions on conflicts of interest. They have to provide disclosures like judges do. There's also limitations on the fees they can charge and following through on their, make sure the companies follow through on their payments so that people get paid timely and stuff like that. It's been passed in, I think,

[01:12:08] six other states but it basically provides some more transparency and accountability and fairness in the arbitration process if people happen to get sucked into it and basically I think there's only either one or maybe two arbitration companies in America this affects I don't believe there's any opposition committee to it that testified and only had one vote against it so I hope we hope we can adopt this bill the question is shall Senate bill 227 pass all in favor of the motion will record their votes aye, those opposed no. Are the senators ready to vote? Have all the senators

[01:12:47] voted? Do any senators desire to change their votes? The clerk will close the roll. Ayes 38, noes 0. Ayes 38, noes 0. Senate Bill 227 passes. Senate Bill 258, a bill relating to Virginia Human Rights Act, menopause or paramenopause discrimination prohibited. The chair recognizes is the senator from western fairfax madam president i move sb 258 passed and speaking to that motion the senator has the floor thank you madam president so this bill amends the virginia

[01:13:27] human rights act to explicitly include menopause or many or perimenopause thereby prohibiting discrimination on the basis of either condition this bill recognizes the importance of including these in the act and acknowledges a significant impact that these conditions can have on individuals day-to-day lives in fact for some women this part of their life can last up to a decade Virginia should model similar actions that have been taken across the nation where these efforts have been made to

[01:14:07] improve menopause and perimenopause by mandating that insurance companies also offer coverage and continuing medical education for physicians so this however just focuses on the Virginia Human Rights Act and ensuring that there is no discrimination I am happy to answer any questions but I hope that my colleagues understand much like pregnancy is protected in the Virginia Human Rights

[01:14:40] Act this is part of the whole reproductive life in a woman's process in a woman's life and it is imperative that nobody discriminates against women anytime thank you the chair recognizes the senator from Mecklenburg thank you matter president i want to speak to the bill please the senator has the floor i really don't want to talk about this bill but it has given me high blood pressure um all day yesterday i was

[01:15:14] burning up um so i accommodated myself today by wearing short sleeves um but this bill look it really does bother me um so for years and years we fought for women's rights and we wanted fairness in the workplace for women but for some reason we want to stand up and point out all these things that make us weaker or make us need accommodations in the workplace you know next year maybe we'll come back and we'll add pms so that we cover our entire lifespan of why we

[01:15:52] we're weaker need accommodations you know so that we'll give reasons why we shouldn't be hired i mean this really irks me to no end um i mean i'm of the age to be able to speak about this menopause and i was looking at the symptoms i mean i think most of us would say that hot flashes would be the thing we need accommodating i mean when i when i have hot flashes i bring my fan to work you know i'm not expecting if i'm in an office with 15 people i'm not expecting them to turn the air condition down to zero where i would like it so that i'm accommodated i wouldn't

[01:16:31] expect the other 14 people to have to live in sub-zero conditions to accommodate me for work i mean i just think it's ridiculous that we would point out all the things that women have to go through um in our lifetimes it doesn't make us weaker or less than it makes us stronger we are tough we do go through a lot and and the fact that we have it in there for childbirth is one thing that is a nine-month substantial life event it has a beginning it has an end menopause is forever

[01:17:07] like she said it could be a decade i mean it you know and when i started with menopause i went to my gynecologist i got on hormone replacement you know do i have many symptoms now no i don't i mean but this is i mean we're asking for something pretty far-reaching here an accommodation for menopause i mean i don't want to seem weak i want to seem strong i want to seem like some i don't want all these old white men getting hired over me you know i'm sorry i want i want people

[01:17:40] to look at me as a strong independent productive woman that's just as hireable and nobody's gonna have to accommodate me for a thing I don't know that I don't all the bills that have given me anxiety this year I don't know why this one bothers me but also when I was looking up the symptoms it popped up that men have menopause too and there were symptoms of that so I mean we need to add them in there too if we're gonna accommodate for the women we need to accommodate for men because there's a whole list of symptoms they have that's all I've got on that thank you madam president yes the chair recognizes the senator from Western

[01:18:20] fairfax you know i've got a loud voice madam president speaking uh to the bill i appreciate the comments from my colleague on the other side of the aisle and i'm actually glad to hear that the things she wants are exactly what this bill does this bill says that you cannot discriminate against somebody who is going through menopause or perimenopause those are both diagnosable

[01:18:55] conditions which doctors can, you know, say when it starts and when it finishes. I feel I'm a pretty strong woman. I think women are strong human beings.

[01:19:11] And I think that if one day you have a panic attack, for example, that sometimes happens during perimenopause, and your boss decides to fire you because that was annoying to them, bill protects you. Right now there is no protection for women who are in this part of their life, which is a considerable part of their life, from employers or from discrimination. That's wrong, and employers should not be able to say, "Oh, you know what, you're 50 years old and you're kind of entering that part of your life

[01:19:50] where you may have some conditions that require some very simple accommodations like working from home one day you cannot get this CEO position we're gonna give it to somebody who's younger we're gonna give it to a man that's what this protects so I hope it is the will of this body to protect women I am not embarrassed to say menopause or Mary Perry menopause because it is the reality of every single woman on this earth that we go through this part of our lives and anybody

[01:20:27] and everybody has women that they love that they need to be considerate towards um and with that i move the bill again the question is shall senate bill 258 pass all in favor of the motion we'll record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their votes the clerk will close the role eyes 21 nose 18

[01:21:03] eyes 21 nose 18. senate bill 258 passes senate bill 315 a bill relating to safeguarding american veteran empowerment act prohibited practices penalties the chair recognizes the senator from Thank you, Madam President. I move the bill to pass and speaking to that motion.

[01:21:25] The Senator has the floor. SB 315 ensures that Virginia veterans are protected from predatory practices while maintaining their fundamental freedom to choose how they navigate the often complicated VA disability process. For many, the VA disability process is hard, adversarial, and fundamentally broken.

[01:21:48] best-run systems are frequently overworked and under-resourced. Filing for disability should be no different than filing taxes. Veterans should have the right to do it for themselves, use a free service, or even hire private experts to help them. Despite the existence of free veteran service organizations and taxpayer-funded state support, thousands of veterans still choose to seek private paid expert help because they need a different level of service. This bill is endorsed by the Southern Poverty Law Center, the Iraq and Afghanistan Veterans of America,

[01:22:25] Frederick Douglass Foundation, Purple Heart Homes, and Teamsters. We passed nearly identical legislation last year on a 37 to 3 vote. And I want to thank my chief co-patrons, the senators from Norfolk, Orange, and Chesapeake.

[01:22:44] There are nine safeguards in the bill for veterans who are seeking assistance, prohibiting initial upfront fees, implementing a cap on fees, mandating disclosure to the veteran the free options, restricting fee-based consulting during the first year of discharge, requiring a contract signed by both parties, mandating that all fees are contingent upon a successful outcome for the veteran, et cetera, and prohibiting the use of overseas call centers.

[01:23:19] Again, I renew my motion. The bill passed. The chair recognizes the senator from Orange. Thank you, Madam President. I rise to speak to the bill. The senator has the floor. Thank you, Madam President. I'd like to thank the senator from Alexandria for taking this bill all the way through as he has family members that have served in uniform.

[01:23:42] Madam President, this is a very important bill for those of us who've worn a cloth. of the country the VA is broken make no mistake it's been broken across several administrations and as much as they've tried to make sure that our veterans coming back from the wars in Afghanistan and Iraq have everything they need one thing they don't have is enough case agents to handle all the various types of claims this is a way it's just a choice it's not mandated to anybody but there's options available to our veterans to try to get rated if they're already have a small rating to get more of the benefits they've earned or if they've never had

[01:24:22] the opportunity even apply for disability ratings at all and so I again I want to thank that the senator from Alexandria for making the option to have that I think we put in the safeguards that would keep our veterans from getting ripped off from some of these scrupulous people that, quite frankly, Madam President, they have been doing it.

[01:24:46] And so it's a very important bill to those of us who warrant a clause. Thank you, Madam President. The question is, shall Senate Bill 315 pass? All in favor of the motion will record their votes, aye. Those opposed, no. Are the senators ready to vote?

[01:25:04] Have all the senators voted? Do any senators desire to change their votes? The clerk will close the roll. Ayes 34, noes 4. ayes 34 noes 4 senate bill 315 passes senate bill 330 a bill relating to virginia criminal sentencing commission department of corrections probation and parole officers subscriber agreements with clerk's offices secure remote access to court records the chair recognizes the senior senator from loudon thank you madam president madam president i move passage of

[01:25:40] the bill and speaking to that motion the senator has the floor madam president this is a bill um that i sit on the virginia sentencing commission and this was a bill that the folks of the virginia sentencing commission asked for me to carry this year um what it does is it just allows for our sentencing commission and our department of corrections to get the same um electronic access that virtually anyone can get to court's files so they can access them more easily to do the jobs that we require them to do look at sentencing guidelines run statistics on how judges are sentencing department of corrections

[01:26:18] help with their they have to run sentencing guidelines to make sure they can access the files more easily madam president with that i move passage of the bill the question is shall senate bill 330 pass all in favor of the motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their votes the clerk will close the roll eyes 39 no zero eyes 39 no zero senate bill 330 passes

[01:26:54] the senate bill 337 a bill relating to virginia national guard other state militia certain communications prohibited the chair recognizes the senior senator from loudon thank you madam president madam president i move passage of the bill and speaking to that motion the senator has the floor madam president senate bill 337 recognizes that we live in an age when executive power has expanded far beyond what our founders intended in fact there's a name assigned to this

[01:27:30] theory that's being put out there to justify it the unitary executive theory it asserts that the president of the united states has unchecked authority over the exec entire executive branch and argues that congress cannot limit the president's authority under this guise presidential emergency declarations have become routine tools of policy rather than extraordinary responses to genuine crises and increasingly we see proposals to deploy military forces for domestic purposes that blur the lines between soldier and police officer

[01:28:04] moreover we have seen suggestions the governors should cooperate to send their national guards into other states for law enforcement purposes circumventing both pate comitatus principles and the consent of the affected states government and people this should not be a partisan issue however this is a constitutional issue and it is a virginia issue this bill recognizes a threat that our founders understood well the tyranny can come not only from a distant federal government

[01:28:39] but from neighboring states emboldened to act beyond their borders virginia's sovereignty extends to our borders no governor of another state has authority to send armed forces into the commonwealth not for quote mutual aid not for law enforcement assistance not for immigration enforcement without Virginia's consent. Our nation was born from resistance to exactly this kind of military overreach. When our ancestors listed their grievances against King George III,

[01:29:15] they did not begin with taxation, Madam President. They began with the quartering of soldiers and the imposition of standing armies upon the colonies without their consent. The Declaration of independence condemned the king for quote keeping among us in times of peace standing armies without the consent of our legislatures and for making quote the military independent of and superior to the civil power our founders knew what we must remember the concentrated military power in executive hands is the

[01:29:54] death of Republican government and they knew equally well that forcing armed troops upon a colony without its consent was an act of subjugation Posse Comitatus. This principle became law in the Posse Comitatus Act of 1878, which prohibited federal troops from enforcing domestic law. That act emerged from bitter experience. Federal troops have been used to enforce reconstruction policies in the South, and Americans recognize the danger of normalizing military involvement in

[01:30:29] civilian governance. Posse Comitatus, the power of the county, embodies the principle that law enforcement is inherently a civilian local function. When soldiers become policemen both suffer soldiers are trained to defeat enemies not to protect constitutional rights and citizens lose the distinction between civic order and martial control for nearly 150 years this principle has protected American liberty that's under siege matter president today the National Guard occupies an ambiguous constitutional space guard members are

[01:31:06] simultaneously state militia under the governor's command and Federal Reserve forces subject to presidential call-up. This dual status was designed as a feature, not a bug. The Guard would remain primarily a state institution called to federal service only for genuine national emergencies or congressionally authorized military operations. But in recent decades we have seen the steady erosion of meaningful limits on when and how the president can federalize state guards. National emergencies are declared with increasing frequency. The line

[01:31:42] between military operations and law enforcement grows even hazier. Guard members, our neighbors, who signed up to defend their state and nation find themselves for purposes far removed from either traditional military missions or genuine emergencies. Virginia has a tradition of resistance, Madam President.

[01:32:04] Virginia has always stood as a bulwark against federal overreach and as a defender of the federal system itself. From Patrick Henry's warning that we should be "suspicious of all men in power" to James Madison's careful architecture of separated powers and federalism. Virginians have insisted that liberty requires limits on centralized authority, but federalism is not only vertical, it is also horizontal. States are co-equal sovereigns within their spheres. No state may exercise military authority within another state's borders without their consent. That is foundational to our federal republic. This

[01:32:43] This is not merely historical pride, it is living constitutional principle. The Tenth Amendment reserves to the states all powers not delegated to the federal government. The militia clauses of Article 1 give Congress specific enumerated powers over the militia, but those powers are not unlimited, and they do not erase the state's primary authority over their own forces or their own territory.

[01:33:10] When the founders wrote those clauses, they were intensely focused on preventing exactly what we now risk. transformation of state militia into federal police forces, deployable at executive whim for domestic political purposes, or worse, the deployment of one state's forces against the people of another state. Americans have always believed in strong state government and a limited federal executive.

We vest tremendous military power in the presidency, but only for the nation's defense and for congressionally authorized purposes. We do not, we must not, allow the president to turn our state forces into an occupying army

[01:33:48] within our own borders nor will we allow the governors of other states to do so. Senate Bill 337 enforces the principle. It says that Virginia's guards answers first to Virginia and serves federal purposes only when those purposes are properly authorized and consistent with our constitutional traditions. It says that our adjutant general, a state officer, will not become a mere conduit for federal conscription of Virginia's citizen soldiers without the governor's knowledge and approval. It says that no armed forces from any other state will cross into Virginia without our consent. It says in short that Virginia's

[01:34:25] militia belongs to Virginia and Virginia's sovereignty will not be violated by federal overreach or interstate military adventurism. Madam President, we do not pass this legislation out of antagonism toward the federal government or toward our sister states, nor out of disrespect for our national defense. We pass it out of fidelity to constitutional principles that have protected American liberty for nearly 250 years. We pass it to avoid what we witnesses this weekend in Minnesota from other forces because we don't want to

[01:35:00] see any more days as was described well in Hamilton, a king sending a fully armed battalion to remind us all of his love. We pass it because we remember that standing armies subject to executive control and deployed for domestic purposes without proper authority are incompatible with Republican government.

[01:35:19] We pass it because we will not allow Virginia's sons and Virginia's daughters in uniform to be used as instruments of federal law enforcement without property authority and consent. We pass it because we will not allow armed forces from other states to enter Virginia and exercise military authority over our citizens without our governor's permission. And we pass it because Virginia has always understood what our founding fathers knew, that the price of liberty is eternal vigilance against the concentration of power, especially military power, in any single set of hands. Whether those hands belong to a

[01:35:55] President, a distant Congress, a neighboring governor, a king across the ocean, or a king across the river. Thank you, Madam President. With that, I move passage. The chair recognizes the senator from Orange. Thank you, Madam President. I rise to speak to the bill. The senator has the floor. Madam President, with all due respect to the senator from Loudoun, this is a bill looking for a problem. Madam President, as somebody who has served in uniform and understand how the

[01:36:31] Army, regular Army, our Reserve Forces, and our Guard work, this is going to cause us real heartache. We didn't have a problem with it on January 6th when Governor Northam sent our Guard up to protect the Capitol, but now we have a problem because our President, President Trump, is in the White House and utilizing the authorities to which he has been bestowed as the Chief Executive and Commander-in-Chief. Madam President, we need to realize that the federal government pays 95% of the salaries of our guardsmen and own 100% of the

[01:37:10] equipment. 100%, Madam President. So if we're going to poke the bear, don't be surprised if the Department of War comes down and takes our helicopters so we can't respond to natural disasters and takes all of our equipment, Madam President, because that's what we're going to try to do. We're going to

poke the bear and the bear is going to bite back, Madam President, I promise you. This is going to make news if this bill is signed into law. Thank you, Madam President.

[01:37:36] the chair recognizes the senator from roanoke thank you madam president speaking briefly to the bill the senator has the floor madam president it was pretty shocking to hear some of the things that were said in defense of this bill hearing about the celebrated history of virginia defying the federal government um and federal overreach there's been a lot of talk on this floor by some of our predecessors that we're not very proud of who said the exact same thing and as i was looking

[01:38:12] at this and hearing about use of the National Guard it just keeps sending my mind back to President Eisenhower's actions with the National Guard and I think that ultimately federal authority is going to surpass this bill in any event but this looks like the sort of thing that would be used against that and so that rhetoric was pretty surprising to hear it's it's been about a generation since there were members on this floor that celebrated Virginia's glorious defiance of the federal government over and over again thank you

[01:38:49] madam president the chair recognizes the senator from Stafford with a patron right for a question well the senator from the senior senator from loud and yield yes I yield the senator has the floor I just would like to know is that does this this particular bill come at the request of anyone specifically is this a request of the administration or what's the genesis of this bill? The senior senator from Loudoun has the floor. Madam President, this bill is in response to the actions that we've seen out of the federal government as these National

[01:39:26] Guards are sent to other states to act in ways that I don't believe are congressionally authorized and historically have not been used. Senator from Stafford. Madam President, speaking to the bill. Senator has the floor. Madam President and members of the Senate, I asked this question because we heard during the campaign that our now governor was quite clear and explicit that Virginia was no longer going to comply and that we would instead become a sanctuary state so this seems like a quite clear reflection of that and I think this is a for many of the reasons that my colleagues have stated this is going to be moving us it's a pretty dangerous territory thank you very much

[01:40:01] the question is shall Senate bill 337 pass all in favor of the motion will record their vote aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll as 21 nose 18 eyes 21 nose 18 Senate bill 337 passes Senate

[01:40:39] bill 459 a bill relating to Virginia Consumer Protection Act liquefied petroleum gas fitters service disconnection requirements civil penalties the chair recognizes the senator from king george thank you madam president move the bill pass and speaking to it the senator has the floor thank you madam president so this bill essentially sets up a process by which if you have propane you have a propane tank and you order it from a service you can request that your um account be closed that they have to come get the gas and pay you

[01:41:18] for the gas i know the the ones who are in committee heard this bill but a constituent who literally went through years and years with amerigas with charges that were unreasonable unauthorized back and forth until eventually these constituents asked to have their account closed amerigas came to their home and took the gas out of the tank and then refused to pay them for the gas that they had taken out of the tank unless they started a new account and new service with

[01:41:51] amerigas it was really a story like you've never heard and it was just unbelievable this would correct that it also allows folks the ability to sue under the virginia consumer protection act to get relief um if the company does not cancel the service and take the gas back um this was a situation with the marigas alone and i don't mean to disparage others but it was really unbelievable what these folks went through with this one company so i hope you'll support this bill

[01:42:25] the question is shall senate bill 459 pass all in favor of the motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 39, noes 0. Ayes 39, noes 0. Senate Bill 459 passes. Senate Bill 575, a bill relating to Virginia Public Procurement

[01:43:02] Act Joint and Cooperative Procurement Construction Exception. The chair recognizes the senator from orange thank you madam president asked a bill passed and speaking to that the senator has the floor madam president this is a administration bill that has to do with intergovernmental support agreements between the federal military installations and a lot of our local and state governments currently our Virginia Public Procurement Act prohibits public bodies purchases from one another from another public body contract specifically for architectural

[01:43:37] design projects and for construction projects that restriction prevents the federal government or federal military installations from making such purchases on existing city county or state contracts as an example pushing snow if you were at Fort Belvoir in Fairfax County that garrison commander there couldn't work with Fairfax County if they were trying to push snow out to get a better deal to push the snow off the the military base as well the The architectural design and construction projects are the primary services that military installations need to share with localities and state contracts.

[01:44:14] Considering we have the most military installations in the United States, 33, it'd be pretty important to include the Pentagon in that as well. This bill, like I said, it came out of the work product of the Virginia Military Advisory Council, which myself and the senator from Alexandria serve on.

[01:44:32] It would provide a very narrow exception to the public procurement construction exemption, allowing our federal military installations to enter into mutually beneficial intergovernmental support agreements with localities. I ask the bill to pass.

[01:44:48] The question-- Madam President, would the gentleman yield for a question? Will the gentleman from Orange yield? Yes, ma'am, I yield. The senator has the floor. Madam President, I would ask the gentleman, he referred to this being a request of the administration, And I would just ask which administration he's talking about.

[01:45:06] Whether it's the Youngkin administration or the Spanberger administration. The Senator from Orange has the floor. Madam President, this would be the Spanberger administration with the new Secretary of Veterans Defense Affairs. Okay. I'd thank the gentleman. The question is, shall Senate Bill 575 pass?

[01:45:31] All in favor of the motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[01:45:48] Ayes 39, noes 0. Ayes 39, noes 0. Senate Bill 575 passes. Senate Bill 769, a bill relating to the General Appropriation Act, Department of Elections. The chair recognizes the senator from Portsmouth.

[01:46:04] Thank you, Madam President. Madam President, I move that Senate Bill 769 pass. And speaking to the bill. The senator has the floor. Madam President, Senate Bill 769 is a constitutional amendment, and it appropriates $100,000 general funds, sorry budget, appropriates $100,000 general fund in fiscal year 2026 to the Division of Legislative Automated Services for any cost associated with the April 21st, 2026 special election.

[01:46:41] Appropriations appropriates $100,000 in the general fund to the Division of Legislative services for any costs associated with the April 21st, 2026 special election, appropriates five million dollars general fund in fiscal year 2026 to the department of elections for any costs associated with April 21st, 2026 special election, which can include voter education, administrative costs of the department, grants funding to localities to defray the cost of absentee voting in person, and other costs associated with April 21st, 2026 special election.

[01:47:15] It directs localities to establish voter satellite offices for the April 21st, 2026 special election to allow for appropriate access to in-person absentee voting. It amends enactment 14 by adding enabling language to direct a special election on April 21st, 2026 related to the constitutional amendment for redistricting, and it amends enactment 14.

[01:47:44] It repeals subsection 3013 of the Code of Virginia directing the publication of proposed amendments to the constitution by the clerk of house of delegates it provides that venue for any suit related to constitutional amendment resolutions enacted constitutional amendments or any related statute should only be proper in the richmond city circuit court effective separate 1st 2025 and directs independent suits to be transferred

[01:48:15] to the richmond city circuit court it includes technical renumbering of chapters 725 of 2025 appropriations act enactments and edits to give effects to all foregoing enactments the appropriation act is effective on its passage as provided in subsection 1 that's 214 of the code of virginia and with that i renew my motion that senate bill 769 passed madam president

[01:48:48] the chair recognizes the senator from rockingham madam president arise to speak to the bill the senator has the floor madam president members of senate this is uh truly an extraordinary bill in a number of respects it must have been extraordinary because we walked into the Senate Finance Committee meeting last Thursday Thursday I believe and for the

[01:49:26] first time with no notice whatsoever on the desk was this bill that nobody had an opportunity to read nobody had an opportunity to review and the body was the committee was expected to vote on it. In the couple of minutes that it took to get the bill to a vote we some of us recognized that there were a couple of

[01:50:02] extraordinary features about this and you know we all know that the gerrymandering amendment is you know sailing through. We all understand the process that we went through back in October but the extraordinary thing about this bill is that it does repeal Virginia code section 30 - 13 now what's extraordinary

[01:50:36] about that what's extraordinary is that that code section requires the public notice of any constitutional amendment that is going to that passes the General Assembly three months before the next election for the House of Delegates. It required publication three months before the next election. Now, in October of 2025, we convened here in Richmond

[01:51:14] for a special session for the purpose of passing that, well, for purpose of considering that constitutional amendment on gerrymandering the Commonwealth of Virginia. It passed this body on a party line vote four days, four days before the election for the House of Delegates. Clearly in violation of Virginia Code section 30-13, it was impossible at that point to comply with that

[01:51:53] duly enacted provision of Virginia law. Now, I would submit that the inclusion of the repeal of this is a clear admission that that is a violation of the law of the Commonwealth of Virginia. Moreover, it is not just a prospective repeal of Virginia Code Section 30-13. It is

[01:52:20] retroactive not to 2025, not even to 2020 or to 2000. It's retroactive to 1971. 1971.

[01:52:38] I would submit that it is patently unconstitutional to repeal retroactively a bill of that nature. That statute was there for a clear purpose: to alert the public that a constitutional amendment had passed once and to ensure that voters know that the next House of Delegates constituted will determine whether that is going to go to the voters.

[01:53:09] And the voters were deprived of that opportunity by the failure to comply with that notice requirement. Now, my good friend from Eastern Fairfax rose and answered questions, and he may at present be referencing A.E. Dick Howard's commentaries on the Constitution of the Commonwealth of Virginia, as I would expect him to.

[01:53:33] And he may very well point out that these provisions contained in 30-13 were once embodied in a former Constitution of the Commonwealth of Virginia, the one that was replaced in 1971.

[01:53:52] And indeed, it was in prior Constitution. But my good friend from Eastern Fairfax also understands and knows well that changing the Constitution of Virginia does not prohibit us from adopting laws that bind not just the public, but they bind us as well. They set forth the obligations that we have to notify the public, and in 30-13, it contained that notice requirement. It was not repealed at the same time that we adopted the 1971 Constitution of

[01:54:32] the Commonwealth of Virginia. It was left in, and the presumption is that it was left there for a reason. It was left there for the reason that the people of the Commonwealth of Virginia need to be put on notice. Now, it may be argued, perhaps, if I have my crystal ball, that it's just not an important law anyway, and that people haven't been abiding by that law. Well, you know what?

[01:55:02] If it was not important, it should have been repealed. It is the law of the Commonwealth of Virginia, and we are bound by it. We cannot absolve ourselves of that obligation by passing a bill that retroactively repeals it for 55 years into the past.

[01:55:25] It is not permissible. It is a clear violation of the procedural due process rights of the people of the Commonwealth of Virginia. I would also point out that embedded in one of the enactment provisions, as was described by my good friend, the senator from Portsmouth, is a provision related to, I guess, the first cousin of gerrymandering, which is forum shopping. Forum shopping involves

[01:56:04] trying to pick a jurisdiction that is most favorable. This bill ignores the fact that there may be, I don't know, may be pending lawsuits and litigation across the Commonwealth of Virginia.

[01:56:21] It says that we are retroactively changing the venue for all matters related to this subject and that the circuit court of the city of Richmond shall, from this point forward, be responsible for handling all litigation with respect to all of these matters.

[01:56:46] Now, we just can't, we can't admit that we screwed up and violated the state law on certainly on something as important as a constitutional amendment and making sure that the voters have due an appropriate and legally required notice of a upcoming constitutional amendment and absolve it by passing retroactive repeal of the law that we just violated.

[01:57:15] It is simply not permitted, it is not right, and we should not do it. It would be my hope, hope rings eternal, I know, but it would be my hope that we would link arms and say we're not going to do this.

[01:57:34] We're not going to do this. It is what we had promised that we weren't going to do when we passed this constitutional amendment. Most of us did. Anyway, it is what we should do.

[01:57:49] should vote no and reject this bill thank you senator from Eastern Fairfax thank you madam president speaking to the bill the senator has the floor thank you madam president sorry I couldn't resist first of all I just want to address all the points that the senator from Rockingham made with regard to the the notice and the hearing last week I would say first of all from my

[01:58:28] perspective that's a little bit of crocodile deers going on there let me explain you why everybody knows that we do a Senate budget every year and we all know what the house does with it but the bill we send over it goes over to the house and there seems to be some deep dark place that those bills go and they never seem to ever come back the house takes very seriously their I guess historical obligation to have the one and only budget bill that we ever pass but every time we send any kind of budget bill over there that originates

[01:59:04] here even though that practice started I think in the 1970s it just never seems to make it to their floor or come back here with amendments or actually come out of conference whatever but in any event it never seems to become law so we all know that Senate bill going over there as a budget isn't gonna get really favorable treatment. We also all know that the House bill that does the exact same thing as this bill is coming over here. We know that because the Minority Caucus refused to wave reads on it today.

[01:59:38] We had to listen to Madam Clerk read the title of the bill because the Minority Caucus wanted to slow it down by one day, which is fine. It's their prerogative. We're going to have a committee hearing tomorrow about the bill where this bill will be talked about again, at which point the text of that bill will now have been in front of the minority caucus and the people of Virginia for what, five, six days? And that bill is the one that's going to end up hopefully going to the governor and getting signed. And so plenty of time to look at it, plenty of time to play with it, plenty of time to consider it. And that bill will be heard, debated,

[02:00:18] amended, whatever. I just want to point that out. And I also just want to note that that bill is going to be given two committee hearings where members had an opportunity to consider it, debate it, read it. In theory, the public could appear. I know the public didn't have a lot of notice last week. This week, they're going to have, if everybody wants to know, the bill will be in committee tomorrow. It'll be an opportunity to be there. And I just want to remind everybody of the history on redistricting and remember what happened in 2013. And I brought this up in

[02:00:56] Senate Finance when we talked about this, but back 13 years ago now, I was sitting down the hall and the other wing, when I learned that the then-majority caucus in the Senate had proposed a floor amendment to a technical redistricting bill that made some small adjustments for precincts to make, I

guess, some registrars happy, they took that bill from Mark Cole, Delgado Mark Cole at the time, and slapped on a bill redrawing the entire Senate of Virginia on the floor of this body.

[02:01:38] And that bill wasn't given any hearing and committee. The public had no opportunity to see it, know their lines are being moved around, know they're being shifted from one district to another. They had no opportunity to know that basically, I don't know how many it was, five, six centers are being drawn out of existence.

[02:01:57] And because it was done as a floor amendment, it went straight back to the other chamber where it had to be heard on the floor. It couldn't even go to committee. So there was no opportunity for the public to come and speak or hear, read it.

[02:02:12] No opportunity for it to go through committee, for a committee to kill it, the committee didn't think it was appropriate. The only thing standing between the majority caucus and the Senate at that time having a decade of power, absolute power, and not, was the Speaker of the House of Delegates.

[02:02:33] He ended up ruling that to be not germane and therefore something that couldn't even be considered. I just find it ironic that that caucus continues to try to complain about notice when it proposed something so incredibly powerful and transformational that it altered the control of one of the branch of government with no notice at all to the public or opportunity for committee hearing.

[02:03:02] I also want to note the advantage that was taken advantage of there was because at the time I I think it was our 80-year-old-- actually, our 80-year-old courts chairman had decided to go watch the inauguration of President Barack Obama because he felt it was so important for him to be there.

[02:03:22] That's what was taken advantage of. I just want to remind everybody of that history. And I'm sure I'm going to hear that, oh, well, we've learned. We're better now. OK, great. Now, with regard to section 30-13 of the code, That code section dates, I believe, if I'm not mistaken, to the Constitution of 1904.

[02:03:47] It might even date before that. But before it was removed from the Constitution, it was in the Constitution of 1904. And as the Senator from Rockingham correctly notes, Senator Dick Howard mentions in his treatise that the 1969 report on the Commission on Constitutional Revision did not recommend any changes.

[02:04:10] But at the 1969 special session on the Constitution, the General Assembly made two changes to how we amend our Constitution. One, I'm quoting, one was to strike the previous requirement of three months publication of an amendment before the intervening election of delegates, and the other was to delete the Authorization General Assembly to submit an amendment to the people at such times that chose instead of requiring submission be not sooner than 90 days after the final passage of the amendment of the Assembly. So the General Assembly looked at the Constitution and they said, you know what, back in 1904, people used to go to the courthouse once a month to get their information.

[02:04:50] If you've ever read about it, it's fascinating history, but everybody used to go to court once a month and they would find out what's going on. They would hear some cases, people would give speeches. I'm sure people were selling food. It was a big high time, but you know what? They got there on their horse or their feet. And the drafters thought in 1971, I guess it was 1969 when this was debated, 71 was adopted two years before I was born, that people don't get their information at the courthouse anymore, that things at times had changed. And so they removed

[02:05:29] that requirement from the Constitution that the amendment be posted on the front door of the courthouse and the voters approved that in 1971 July 1 of 1971 50 50 days 52 days before I was born the and for some reason I'm not sure anybody who works at DLS or who is serving in the General Assembly at the time is still alive could tell us this code changes that followed on the

[02:06:04] amendment to the Constitution didn't happen. Some at DLS have opined that they missed it or must have been forgotten, but I'm not sure anybody really knows the answer why it didn't get removed. But things happen around here. People forget to do things all the time around here. And this is why when the Code Commission was looking at recodifying Title 30 over the last year, when they went through Title 30 and they looked for code sections that they felt were obsolete and inconsistent with the

[02:06:39] Constitution, they recommended for deletion, title 30-13 of the Code. And back when this first came up, I talked to people on the Code Commission and was told that when that came up, the Code Commission report is online, you go read it yourself, and it explains the reason, because it's antiquated, outdated, it's not considered the Constitution anymore. Nobody in the Code Commission objected, including the minority leader who sits on the Code Commission. And this 30-13 issue didn't become an issue until it got raised by the minority leader, the senator from Franklin County, who have now filed a lawsuit based on this code section that is recommended for removal by the code

[02:07:17] commission in Tazewell County Virginia thus what brings us here today so there's a bill pending to recodify title 30 that bill repeals section 30-13 of the code we decided to accelerate that a little bit and in discussing the consequences of what it of what if if if if if by the way this section about posting at the courthouse who knows if it's been followed it's unlikely that it's been followed that all 120 clerks across the state have been publishing this for

[02:07:53] every single constitutional amendment for like the last 52 years or whatever it was 50 54 years to be safe and to ensure that we don't invalidate or that the senators over here do not invalidate every single constitutional amendment that we've passed for the last 54 years it was thought to be safer to repeal the statute effective to 1971 to answer that question so that we don't repeal them all. So that all those constitutional amendments are not attacked for their legitimacy. And the last thing I would say meant a president is there are lots of statutes that are in code. How they're

[02:08:33] enforced is a matter for the courts. I've had many statutes I've argued in court that I've felt my clients have felt have been violated. That does not necessarily mean that when a statute is violated, I'm not saying this one was violated, that there is a remedy for that. And I would note that the document that decides how to amend the Constitution is the Constitution it is not the code the voters of Virginia decided how to amend the Constitution when they have I think it's article 12 I think in the Constitution which says how the Constitution is amended and it doesn't

[02:09:12] say in there that the Constitution is amended pursuant to this and and what other other requirements the General Assembly happens to throw in if they feel like throwing other things in there doesn't say that so it submit that is what governs amendments not a code section which was stuck in there because some language when people rode horses around in 1904 that is mysteriously still in the code after all these years because somebody forgot to take it out. So Madam President, I would submit that this bill is a good cleanup bill to make sure that our other work we've done before doesn't get challenged and we need to pass it and we're going to have this debate all over again probably

[02:09:51] Thursday or Friday again and I'm sure I'm going to read all the words I just said in a brief that's to be filed next week. Thank you, Madam President. The chair recognizes the senator from Roanoke. Madam President, I rise to speak to the bill. The senator has the floor. Thank you, Madam President. I was a little perplexed by that lengthy set of remarks. At one time we were told that this bill wasn't so consequential that it needed notice because it was just a Senate budget bill and those are never become law.

[02:10:31] And then other time, we heard the lengthy remarks on why this was so important that we pass it. And I don't want to go back to all the previous eras, and I don't want to go back to talking about how this retroactively changes something 14 years before I was born, and I'm now on a third term here in the state senate.

[02:10:50] But I would like to remind the senator from Fairfax, Eastern Fairfax, our majority leader, that we had a pretty strong finance chair just five years ago named Janet Howe from Fairfax. And she got an appropriation Senate bill enacted into law.

[02:11:07] And its primary purpose dealt exactly with elections. And it was very close to an upstanding election. And we've got a pretty strong finance chair right now in the Senate from Portsmouth. And I think she might be able to get it enacted into law. And I don't think that this ought to be enacted into law.

[02:11:24] But we ought not dismiss something that happened only five years ago as saying it's not possible of happening again. Thank you, Madam President. The chair recognizes the senator from Hanover. Thank you, Madam President.

[02:11:42] Madam President, rise to speak to the bill. The senator has the floor. Thank you, Madam President. Madam President, I must tell you I'm surprised. I'm surprised to come to session today and watch a failed attempt at magic.

[02:12:00] Madam President, I've seen some of those behind the scenes shows and they say, don't look at what I'm doing over here while I do something over here. And Madam President, that was the speech we just heard. We just heard my learned friend, trial attorney, try to change the subject, tried to change the subject of what this bill does.

[02:12:29] This bill tries to get in front of a lawsuit and say, "I'm worried that I'm going to lose on the legal issues, so I am going to take the judge's ability to decide the case away.

[02:12:45] I'm going to move it to somewhere else. I'm going to change the law because I am worried that the law requires me to do something I didn't do." Madam President, that's what this bill is about.

[02:13:02] So don't be confused by the magic. Don't be confused by the change of direction. This bill does a couple things. It changes the law, what the law is today. It says it doesn't change the law for the future.

[02:13:18] It changes the law in history. It goes back 50 years. Back to the future was a play down the street this week. Should not be on the Senate floor of Virginia.

[02:13:33] We don't have a time machine. don't have a DeLorean to go back. If the law was in place, you can't go back and say, "Whoops, I didn't want it to be in place 50 years ago, even though it really was, so I'm gonna go back and undo that." Madam President, this bill does something else. It spends five plus million of your dollars. As we've all been here and our staff has been here dealing with difficult issues of

[02:14:08] Virginians, we should be focused on keeping money in their wallet. Madam President, this spends their money on a political gerrymander. Let's make sure we understand it. A political gerrymander. And I will agree with my colleague from Fairfax. You know, Republicans have been guilty of gerrymandering and Democrats have been guilty of gerrymandering. We've both done it. We've both done it. I

[02:14:41] remember when some of my friends across the aisle and maybe the senator was then a house member when my seatmate house all sudden one afternoon mysteriously moved from one Senate district to another we didn't know how it happened it just appeared so madam president for my colleagues across the aisle to talk about things happening in the night and redistricting gerrymandering people out

[02:15:17] of districts they've done it too but madam president I tell Reagan just because somebody else did something bad doesn't mean you have to do it too you can still get punished madam president in the instance that the senator talked about, Republicans stood up and said no. They said no. Madam President, my Democratic friends, each one of them can make the same decision and stand up and say no to this political gerrymandering. So, Madam President, so we've talked about

[02:15:56] a couple things. One, the ability to try to redirect to the fact that we're changing the law when we're losing a lawsuit. Two, we're trying to redirect when we're saying we don't like where the lawsuit is because we're losing so let's change the venue and get a different judge and then madam president we've talked about a third thing and that is we're not making it more affordable for Virginians because we're spending their tax dollars on a political gerrymander so we can get a political advantage but I do want to

[02:16:32] talk about a few facts. I do find it interesting the senator indicates a committee, code commission committee, and discussion about Virginia code section 3013. I gotta tell you, it's not a code section I kept in the foremost of my thought processes and as that committee met I distinctly recall some of our staff saying this is not something anybody does anymore. But Madam President And I'm staring at a letter that we learned after that meeting, and when we asked staff,

[02:17:11] they corrected and said, "Yes, it actually has been used." And since 1971, Madam President, I'm staring at a letter dated April 1, 2019. It's on the letterhead from the House of Delegates, G.

[02:17:29] Paul Nardo, Clerk of the House of Delegates, Keeper of the Rolls of the Commonwealth. And it has the address of the State Capitol right here in Richmond. And I want to remind you again of the date, April 1, 2019.

[02:17:45] This wasn't 50 years ago. This was not 1971. This was not forgotten after 1972. And Madam President, the letter references from the Clerk of the House of Delegates to the Clerks of the Circuit Courts, from G. Paul Nardo.

[02:18:09] And it says, proposed amendments to the Constitution of Virginia for posting. This was not an accident. Nobody forgot about it. They actually did it. They actually did it, Madam President. It says, as you may be aware, Code Section 30-13 of the Code of Virginia directs the clerk of the House of Delegates to have published all proposed amendments to the Constitution of Virginia.

[02:18:41] in fulfillment of that statutory requirement. So, actually doing the duty that was prescribed to the clerk of the House of Delegates in the Code, please find below the links to five proposed constitutional amendments that were agreed to by the General Assembly during the 2019 session.

[02:19:04] Madam President, I'll go through those. they were the constitutional amendment relating to what apportionment that's redistricting that's the same gerrymandering that we're talking about there's no mistake about this this is how the process was done madam president there's constitutional amendments relating to apportionment to redistricting commission oh yes that's the thing where we decided to take gerrymandering

[02:19:39] away from the legislature we agreed republicans and democrats until all of a sudden all of a sudden somebody said whoops i don't like that i want to be able to make the decisions something is happening that makes me want to gerrymander again so we decided on a process virginians voted on a process we said we're not going to do the games between republicans and democrats we're going to have fair districts. We're gonna have districts that are not gerrymandered

[02:20:18] until we don't want to do that anymore. And Madam President, I won't read all the rest of the constitutional amendments relating to personal property tax exemptions for disabled veterans, but Madam President, bring you back to the beginning. Don't be confused by the sleight of hand. This bill does three

[02:20:50] things: makes Virginia less affordable, pays money out of your pockets, plain and simple. It tries to say, "I don't like the judge deciding my case, so I want to switch it. Within a week of filing the bill, I'm going to switch the jurisdiction. I'm sure that this bill is going to come through, and I'm confident that my friends across the aisle are going to vote it out at the end of the week, and then I don't have a way to change the future, I'm not Nostradonymous, but for those of

[02:21:27] y'all old enough, I remember the great Karnak, and I'm going to predict the future, and I'm going to predict the future that on Friday, we're going to see an amendment from the governor, governor that promised to be bipartisan, that told us how much she wanted to work together, and I bet you that amendment is going to say this bill has an emergency. That it has to be done on Friday. And so the attempt is going to be to change the law in a week. Change the

[02:22:01] law in the week. Back to 1971. So I'm not getting in the DeLorean and going back, but I bet you I'm right on predicting the future by the end of this week. And Madam President, don't be confused. The law says the clerk of the House, the clerks of the circuit court followed the law for other constitutional amendments.

[02:22:28] We're not fixing anything for other constitutional amendments. The law was followed. You can read it. This is trying to say I don't like the judge, I don't like the law, so I'm just gonna change it and go back. And while I'm doing it I'm gonna take your money, not save you money on energy when it's cold outside, not save you money on your groceries, I'm gonna spend it on my own personal redistricting gerrymander. So, Madam President, as much as this magic trick has

[02:23:03] tried to occur, it is crystal clear, crystal clear, Virginians are going to pay the price financially out of their wallet and politically because gerrymander is going to be the direction of the future. I hope that we do not support this measure seeing no other senators who wish to speak we return to the original motion the senator from

[02:23:38] portsmouth yes madam president if no one else would like to speak to senate bill 769 i renew my motion that the bill pass the question is shall senate bill 769 pass all in favor of the motion will record

their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their votes the clerk will close the roll as 21 nose 18

[02:24:14] eyes 21 nose 18 senate bill 769 passes returning to page 9 senate bill 71 the chair recognizes the Senator from Arlington. Thank you, Madam President. Madam President, I withdraw my previous motion asking that Senate Bill 71 pass. Without objection, the motion is withdrawn. Thank you. Madam President, I now ask that Senate Bill 71 be re-referred to the courts of justice in the Senate. The question

[02:24:51] is shall the bill senate bill 71 be recommitted to the committee on the courts of for justice re-referred be referred to the committee on the committee of courts all in favor of the motion will say aye any opposed no the ayes have it the bill is re-referred uncontested calendar senate

[02:25:20] bills on second reading the chair recognizes the senator from eastern fairfax um madam president I move that all the Senate bills on for second reading, I'm sorry, second reading, oh page 13, sorry. On second reading on the uncontested calendar on pages 13 through 16, Senate Bill 75 to 608 be advanced through engrossment. Third reading in the block, I have the adoption of any amendments there too. Any Senators are going to move the bill from the block, please do so after the clerk's read the

[02:25:56] number of the bill. The question is, shall all Senate bills on second reading on the uncontested calendar on pages 13 through 16 Senate Bill 75 through Senate Bill 608 be engrossed in advance to their third reading in the block after the adoption of the amendments thereto that any senator desiring to remove a bill from the block will do so after the clerk has read the number of the bill.

[02:26:23] All in favor of the motion will say aye. Any opposed no. The ayes have it. The motion is agreed to, the clerk will read the number of the bills. Senate Bill 75, reported from the Committee on Rehabilitation and Social Services with the substitute. The chair recognizes the senator from Portsmouth. Thank you, Madam President. Madam President, I move the committee substitute to be agreed to. The question is, shall the committee substitute from the Committee on Rehabilitation and Social Services be agreed to? All in favor of the motion

[02:26:54] will say aye any opposed no the ayes have it the amendment is agreed to senate bill 124 reported from the committee on transportation senate bill 133 reported from the committee on rehabilitation and social services with the substitute the chair recognizes the senator from hampton thank you madam president i move that the substitute be agreed to the question is shall the committee substitute from the Committee on Rehabilitation and Social Services be agreed to all in favor of the motion

[02:27:26] will say aye any opposed no the ayes have it the committee substitute is agreed to Senate Bill 320 reported from the Committee on Transportation Senate Bill 321 reported from the Committee on Transportation Senate Bill 389 reported from the Committee on Transportation with an amendment the chair recognizes the senator from the isle of white thank you madam president i would like to move the amendments from the committee on transportation the question is shall the amendment from the committee on transportation be agreed to all in favor of the motion will say aye

[02:28:03] any opposed no the ayes have it the amendment from the committee on transportation is agreed to senate bill 436 reported from the committee on transportation with amendments the chair recognizes the senior senator from henrico thank you madam president i move that the committee amendments would be agreed to agreed to the question is shall the amendments from the committee on transportation be agreed to all in favor of the motions shall say aye any opposed no the ayes have it the

committee amendments are agreed to senate bill 441 reported from the committee on transportation senate bill

[02:28:43] 445 reported from the committee on transportation senate bill 608 reported from the committee on rehabilitation and social services with amendment the chair recognizes the senator from Washington I think my president moved the committee agreement be agreed to the question is shall the amendment from the committee on rehabilitation and social services be agreed to all in favor of the motion will say aye any opposed no the ayes have it the committee amendment is agreed to. The question is, shall the Senate bills be engrossed in advance to their third

[02:29:20] reading? All in favor of the motion will say aye. Any opposed, no. The ayes have it. The bills are engrossed and advanced to their third reading. Regular calendar Senate bill is on second reading. Senate bill 59, a bill relating to photo speed monitoring devices, photo monitoring system for traffic signals proof of violation certain retired law enforcement officials and registered conservators of the peace training reported from the Committee on Transportation with a substitute the chair recognizes the senator from York Madam President I move that the substitute be agreed to the

[02:29:59] question is shall the substitute from the Committee on Transportation be agreed to all in favor of the motion will say aye any opposed no the ayes Ayes have it. The committee substitute is agreed to. The senator from York. Madam President, I move that the bill be engrossed and advanced to its third reading.

[02:30:17] The question is, shall the Senate Bill 59 be engrossed and advanced to its third reading? All in favor of the motion will say aye. Any opposed, no. The ayes have it. The bill is engrossed and advanced. Senate Bill 64, a bill relating to Department of Juvenile Justice, commitment of juveniles to department, petition to extend duration of indeterminate commitment.

[02:30:41] The chair recognizes the senator from Arlington. Committee on Rehabilitation and Social Services with amendments. The chair recognizes the senator from Arlington. Thank you, Madam President. Madam President, I move that the amendments be agreed to. The question is, shall the amendments from the Committee on Rehabilitation and Social Services be agreed to?

[02:31:01] All in favor of the motion, we'll say aye. Aye. Any opposed, no. The ayes have it. committee amendments are agreed to the senator from arlington thank you madam president i move that the bill be engrossed in advance to its third reading the question is shall senate bill 64 be engrossed in advance to its third reading all in favor of the motion will say aye any opposed no the ayes have it the bill is engrossed and advanced senate bill 150 a bill relating to school bus video monitoring systems enforcement sworn or affirmed certificates reported

[02:31:36] from the committee on transportation the chair recognizes the senator from Chesapeake thank you madam president madam president I move the bill be engrossed in advance to his third reading the question is shall the bill be engrossed in advance to his third reading all in favor of the motion will say aye. Any opposed, no. The ayes have it. The bill is engrossed and advanced. Senate bill 297, a bill relating to use of photo speed monitoring devices repeal reported from the Committee on Transportation. The chair recognizes the

[02:32:14] senator from Lynchburg. Thank you madam president. May Senate bills 297 and 306 go by for the day. Without objection. Senate bills 297 and 306 go by for the Senate bill 435 a bill relating to lane filtering motorcycles penalty reported from the committee on transportation with amendment the chair

recognizes the senior senator from Henrico thank you madam president madam president I move the committee amendments the question is shall the amendment from the committee on transportation be agreed to all in

[02:32:52] favor of the motion will say aye any opposed no the ayes have it the amendment is agreed to the senator senior senator from Henrico thank you madam president I move that the bill be engrossed in advance to his third reading the question is shall Senate bill 435 be engrossed in advance to his third reading all in favor of the motion will say aye any opposed no the eyes have it Senate bill 435 is engrossed and advanced Senate bill 437 a bill relating to green warning lights vehicles equipped with truck mounted

[02:33:28] attenuators reported from the Committee on Transportation with amendments. The chair recognizes the senior senator from Henrico. Thank you, Madam President. Madam President, I move the committee amendments. The question is, shall the amendments from the Committee on Transportation be agreed to? All in favor of the motion will say aye. Any opposed, no. The ayes have it. The committee amendments are agreed to. Senior Senator from Henrico. Thank you, Madam President. I move that the bill be engrossed in advance to its third reading. The question is, shall Will Senate Bill 437 be engrossed and advanced to his third reading?

[02:34:02] All in favor of the motion will say aye. Any opposed, no. The ayes have it. The bill is engrossed and advanced. Senate Bill 440, a bill relating to use of license plates from another vehicle, authorized time period, reported from the Committee on Transportation.

[02:34:19] The chair recognizes the senior senator from Henrica. Thank you, Madam President. I move that the bill be engrossed and advanced to his third reading. The question is, shall Senate Bill 440 be engrossed and advanced to his third reading? All in favor of the motion will say aye.

[02:34:34] Any opposed, no. The bill is engrossed and advanced. Senate Bill 538, a bill relating to parole investigation prior to release, input from the attorney for the Commonwealth, reported from the Committee on Rehabilitation and Social Services, with amendments.

[02:34:52] The chair recognizes the senator from Roanoke. Thank you, Madam President. Madam President, I'd ask that the Senate agree to the committee amendments on Senate Bill 538. The question is, shall the amendments from the Committee on Rehabilitation and Social Services be agreed to?

[02:35:09] All in favor will say aye. Any opposed, no. The ayes have it. The committee amendments are agreed to. Senator from Roanoke. Thank you, Madam President. I now move that Senate Bill 538 be engrossed in advance to its third constitutional reading.

[02:35:28] The question is, shall Senate Bill 538 be engrossed and advanced to its third reading? All in favor of the motion will say aye. Any opposed, no. The ayes have it. The bill is engrossed and advanced. Uncontested calendar. Senate bill is on first reading. The chair recognizes the senator from Eastern Fairfax.

[02:35:48] Madam President, move all the Senate bills on first reading on the uncontested regular calendars, pages 20 through 25, Senate bills 51 to 648. That the rules be suspended and the first counselor's reading and the titles be dispensed with. The question is, shall the rules be suspended in the first constitutional reading of the titles of Senate bills on the uncontested and regular calendars, pages 20 through 25, Senate Bill 51 through Senate Bill 648, be dispensed with?

[02:36:16] All in favor of the motion will record their votes aye, those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[02:36:36] Ayes 39, no 0. Ayes 39, no 0. The reading of the titles is dispensed with. The chair recognizes the senator from Eastern Fairfax. Madam President, I ask those bills go by for the day.

[02:36:55] The question is, shall the bills now go by for the day? All in favor of the motion will say aye. Any opposed, no. The ayes have it. The bills go by for the day. The chair calls on the senator from Eastern Fairfax.

[02:37:14] Inquiry to the clerk, does that complete today's calendar? Yes, sir. Is there any other business to come before the Senate? The chair recognizes the senator from Colonial Heights. Thank you, Madam President, and I rise for a point of personal privilege.

[02:37:32] The senator has the floor. Thank you, Madam President. We have all been dealing with the winter weather over the last several days, and the Minority Leader, the Senator from Hanover, thanked many of the folks here at the Capitol who have helped us, and I wanted to piggyback on that and also express my thanks and our thanks to the Capitol Police over the last several days.

[02:37:57] Lieutenant Josh Duncan shared with me that under the leadership of Colonel McKee, Capitol Police maintained mission focus and a true service orientation over the last several days, rather than call out of work, our officers made it in from as far away as Blackstone and Emporia to complete their tours of duty during the height of the storm this past weekend.

[02:38:21] We had Capitol Police dispatchers who staffed the lines 24-7, handled calls for service, calls for courtesy rides for many of us, and handled questions from both citizens and constituents about a myriad of issues, from the condition of the roads and parking decks to tour hours and visitation and they did it all while working extended shifts and during time away from their families and carrying the pressures of keeping a household going during the storm.

[02:38:51] Capitol Police Sergeants also provided regular updates on the condition of Capitol Square and the surrounding area to leadership throughout state government so they could make informed decisions about closings and delays and keep staff safe and prepared. The Capitol Police's core values are devotion character and professionalism and over the last several days as always they put those values into practice in a way that we all benefited from and so I wanted to personally thank them myself and hope that all of us who have appreciated the good work of the Capitol Police and

[02:39:27] getting all of us where we need to go safely that we would thank them personally when we we see them over the coming days thank you madam president Thank you Senator. The chair recognizes the senator from Richmond City. Thank you Madam President. I rise to request unanimous consent to introduce a bill. The senator may proceed. Yes ma'am. Thank you Madam President. The bill seeks to establish a refundable tax credit to expand solar and short duration battery storage deployment across the Commonwealth.

[02:40:03] Thank you, Senator. The question is, shall we have unanimous consent to introduce the Senator from Hanover. Madam President, speaking to the motion, Madam President, I'd like to thank the Senator for reaching out to us.

[02:40:23] I believe it was Friday as we were in the throes of preparing for the storm and indicating that he was going to bring that forward. So thank you for your courtesy in doing that, and I encourage the members on my side of the aisle to grant that unanimous consent.

[02:40:40] The question is, shall the Senate grant consent to introduce a bill relating to solar storage? All in favor of the motion, we'll say aye.

[02:40:57] Any opposed, no. The ayes have it. The consent of the Senate is granted to introduce the bill. The chair recognizes the senator from Franklin County. Thank you, Madam President.

[02:41:13] I rise for a point of personal privilege. The Senator has the floor. Thank you, Madam President. Members of the body. Yesterday, my colleague, my good friend, the Senator from Alexandria, rose to eloquently speak about immigration enforcement and express concerns about the treatment of individuals during such operations.

[02:41:31] While we may hold different views on immigration policy, I believe that every member of this body would agree that we must condemn violence and incitement to violence against anyone every time. Madam President, I am deeply disturbed to bring to this body's attention a matter that strikes at the very heart of our Commonwealth's values and the safety of federal law enforcement officers. A health care worker at one of Virginia's premier medical institutions has just posted a series of videos on social media openly encouraging acts of violence against immigration and

[02:42:08] customs enforcement agents. These are not vague threats. They were specific, calculated instructions for assaults and perhaps even murder. This individual, entrusted with the care of patients, has called upon others to fill syringes with psychocycline, a deadly paralytic drug to use against federal officers. She has encouraged people to harvest poison ivy and poison oak, mix it with water, and spray it into the faces of these agents.

[02:42:45] She has urged women to use dating applications to lure officers and then contaminate their food and drinks to incapacitate them. She has called for the sabotaging of their living conditions, their hotels, their meals, to, in her words, to make their lives miserable and or unmanageable.

[02:43:06] Madam President, let me be clear. These are not policy disagreements. These are instructions for criminal assault. These are calls for poisoning. This is incitement to violence against men and women who wear the uniform of the United States government and its law enforcement.

[02:43:27] My colleague from Alexandria yesterday spoke of protecting human dignity and announcing deeply disturbing tactics. I share those values. I agree with my friend. But human dignity must extend to all, including the federal officers who leave their families each morning to enforce the laws that this nation has enacted through its democratic processes.

[02:43:54] Madam President, we can disagree about immigration policy. We can debate enforcement tactics. We can advocate for reform through the proper legislative channels if we don't like what we see. But Madam President, we cannot, we must not remain silent when individuals in positions of the public trust call for violence against law enforcement.

[02:44:21] This health care worker has taken an oath to do no harm. Instead, she's instructing others how to inflict it. She works at a public institution supported by the taxpayers of this commonwealth. The board of visitors and leadership at this university must act swiftly and decisively.

[02:44:42] For this is a black eye upon the integrity of the Commonwealth of Virginia. Madam President, I call on every member of this body, regardless of your party, to join me in condemning this dangerous rhetoric. Violence is not resistance.

[02:45:01] Poisoning, Madam President, is not protest. To the men and women of federal law enforcement and all of our law enforcement serving in Virginia, we see you. We thank you for your service. We know and understand that your job is tough and we will not tolerate those that call for your harm.

[02:45:26] Thank you, Madam President. Thank you, Senator. The clerk will report any announcements on the desk. Today, Tuesday, January 27, 2026, the Committee on Privileges and Elections will meet 15 minutes after adjournment in Senate Room B, GAB.

[02:45:50] The Committee on Agriculture, Conservation, and Natural Resources will meet 30 minutes after adjournment in Senate Room A, GAB. The Finance and Appropriations Subcommittee on Education will not meet. The Finance and Appropriations Subcommittee on Resources will meet at 3.30 p.m. in the Senate Finance and Appropriations Room, 13th floor, GAB.

[02:46:13] The Education and Health Subcommittee on Health will meet at 4 o'clock p.m. in Senate Room C, GAB. Wednesday, January 28, 2026. The Finance and Appropriations Subcommittee on Public Safety and Claims will meet at 7.30 a.m. in the Senate Finance and Appropriations Room, 13th Floor, GAB.

[02:46:35] The Women's Legislative Roundtable will meet virtually at 8.30 a.m. The Committee on Finance and Appropriations will meet at 9 o'clock a.m. in Senate Room A, GAB. The Democratic Caucus will meet at 11:15 a.m. in Senate Room 1 of the Capitol.

[02:46:52] The Republican Caucus will meet at 11:30 a.m. in Senate Room 2 of the Capitol. The Chair recognizes the Senator from Portsmouth. Thank you, Madam President.

[02:47:07] Madam President, I move that the Senate do now adjourn until 12 noon on tomorrow. The question is, shall the Senate adjourn until 12 noon tomorrow? All in favor of the motion, we'll say aye. Any opposed, no.

[02:47:23] Ayes have it. The motion is agreed to. The Senate stands adjourned until 12 noon tomorrow.

[02:47:29] This is the Senate of Virginia. Richmond, Virginia.

[02:48:05] Senate chamber. This is the Senate of Virginia. Richmond, Virginia. Senate chamber.

